



Community Engagements for Sustainable Transformation

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Motto: Building a Better Community

THE CONSTITUTION OF COMMUNITY ENGAGEMENTS FOR SUSTAINABLE TRANSFORMATION (CEST)

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PART I- PRELIMINARIES

Article 1: INTERPRETATION:

In this constitution the following holds, unless the context otherwise requires:

- (a) President means any person elected in accordance with part (v), Articles (5) of this Constitution
- (b) Coordinator means any person elected or appointed to act in that capacity in his/her area both home and (or) abroad
- (c) CEST means Community Engagements for Sustainable Transformation (CEST)
- (d) Constitution means the set of rules which govern and regulate the activities of the Organization
- (e) Members means all persons who are legally registered as stated by part (IV) of this Constitution
- (f) Executive Management Body means persons elected or appointed to any position according to part (VI) of this Constitution
- (g) Annual General Meeting (AGM) means a meeting held once every year
- (h) The Board; means the Board of Directors and or the Advisory board
- (i) Extra Ordinary Meeting (EOM) means all meetings held in accordance with this constitution when the need arises
- (j) Association means the General Institution headed by a President
- (k) Organisation means the institution (corporate level) headed by a chairman or Executive Director or CEO

PART II- ESTABLISHMENT OF THE ASSOCIATION

Article 2: Background of The Association

There shall be an establishment of a body called Community Engagements for Sustainable Transformation (REST). It shall comprise both home based members and those in the diaspora. This establishment is formed by a coalition of students from Kunike Sanda chiefdom in 2014, and was formally called Kunike Academic Descendants' Association (KADA). During its inception stage, the focal persons and initiators were; Mr. Abu Bakarr Koroma and Ibrahim Chernor Jalloh of Njala University, Bo campus and Njala campus respectively during their second year at the university. The Association has since been trying to increase its membership both National and International. It shall at General/Community level be headed by the President and Area Coordinators whose functions shall be guided by the dictates of this constitution, AND at Corporate and Strategic level it shall be headed by the Chairman, Board of Directors or Executive Director or CEO and founder. The name was finally

changed from Kunike Academic Descendants' Association (KADA) to Community Engagements for Sustainable Transformation (CEST) in 2018

(a) **Vision Statement:** Community Engagements for Sustainable Transformation (CEST) is anchored on society change through community engagements and youth lead actions, instilling in them responsible and patriotic citizenship, and with a drive to reach more clients at the corporate level through contracts establishments and generate more income for improving the lives of CEST Members and its clients for a better Nation

(b) **Mission Statement:** As a conglomeration of like-minded individuals serving as change agents for society's transformation, it uses Community engagements, youth lead actions and other business skills in the vain of combating the numerous challenges the Country faces and re-branding it values as a better and prosperous Nation by mainstreaming youth and youth led institutions to amass positive change, respect the value of human right and the rule of law and increasing the participation of every Sierra Leonean to the development of the Country

(c) General objective:

The ultimate goal and general objective of CEST is to activate and install national consciousness and love for our Country in order to lay a building block for the emergence of a responsible citizenship in the service of a united, progressive, business oriented and indivisible Nation, and serving as a nucleus for improving the nutritional value of formal and Non-formal Technical Vocational Educational Training (ITVET) for youth beneficiaries and to improve the income level of all its members and Clients

(d) Aims and objectives:

- I. To help reactivate a feeling of national consciousness and love for our Nation
- II. Provide capacity building, technical assistance, and financial support to emerging young businessmen and women and creating ways to sustain their businesses.
- III. Peace building engagements at community levels
- IV. To undertake research and other consultancies
- V. To provide other general merchandize to clients and or partners
- VI. Strengthen the capacity and empower young men and women to be self-reliant
- VII. To implement donor or government funded projects for the benefit of all
- VIII. Provide business support services to enterprising youth and business management skills; access to financial services and capacity building
- IX. Share knowledge and impart best practices on sustainable enterprises
- X. Create employment through small business development and partnerships
- XI. Mentor young men and women in enterprise development and business activities
- XII. Skills training and capacity building workshops on Developing and Implementing Business Plans, Business management, financial management and services, Knowledge sharing and best practices
- XIII. Business support services to Youth (Mentoring, Access to Credit and Financial support)
- XIV. Needs assessment and development of operational documents and road maps
- XV. To promote Youth capacity building and provide training Services to Non-Formal Groups
- XVI. To seek the welfare of all its members
- XVII. To capacitate youth groups, SMEs, CBOs, and generally Non-formal TVET Groups through training services
- XVIII. To create possible employment for the Facilitators as well as its members
- XIX. To collaborate with development partners working in the same vein with CEST
- XX. To create a reliable and efficient network through which the outstanding performance of youth or youth led organizations to national development will be recognized and acknowledged both within the Country and the global community
- XXI. To help promote good health and sanitation by actively involving in sensitizing the communities on health-related issues
- XXII. To come to the aid of the community in terms of emergencies
- XXIII. To conduct edutainment programs for national development and participate in other social activities

- XXIV. To do public campaigns for parents to send their Children to school and serve as a network for Conflict resolution
- XXV. To serve as a training ground for youth to champion their own course of welfare, economics, political, social and developmental issues of the country
- XXVI. To preach to youths to accept the culture of hard work, determination and dedication in their academic work in replacement of drug addiction, violence, cultism and other social vices.

(e) Motto and Symbol:

- ✧ **Motto:** Building a Better Community
- ✧ **Symbol:** The symbol of Community Engagements for Sustainable Transformation (CEST) is a hand holding three (3) people and an academic hat; which means standing together for development and social cohesion and using education as a tool for sustainable transformation.

(f) Neutrality and Nondiscrimination:

The Community Engagements for Sustainable Transformation (CEST) is a neutral body in terms of politics, religion, race and traditions. It is against the discrimination of any form of private persons or group of people on account of Ethnic origin, Gender, Language, Religion, Politics or any resources is strictly prohibited and punishable by suspension or expulsion from the Association

PART THREE (III) - THE CONSTITUTION

Article 3: Fundamental principles of the Association

- (a) Respect the views of others during meetings of the Associations
- (b) All members who wish to make contribution(s) during meetings should do so through the chairperson of that particular meeting
- (c) Members must pay all their contributions as agreed by the Association both as before they become eligible to any support as enshrined in this Constitution
- (d) The use of abusive languages is highly prohibited during meetings and is punishable by fine agreed upon by the executive management body
- (e) Any member failing to attend five consecutive meetings without any tangible reason for doing so, is tantamount to expulsion
- (f) Members failing to attend two or more consecutive meetings without any good reason, are liable to a fine agreed upon by the Executive body headed by the President
- (g) The general membership of CEST shall stand in solidarity with other members in the case of death, serious ill health conditions, fatalities and all forms of life-threatening situations when they befall any.
- (h) Each member is obliged to pay the loan interest of a particular loan given to him/her within the stipulated time frame, failing to do so is punishable by a fine to be agreed upon by the executive members of the Association
- (i) Monthly subscription per member is said to be at an amount that will be agreed upon by members
- (j) Members who wished to send representatives to attend meetings on their behalf can do so (but not exceeding 4 consecutive meetings), and the reps are also eligible to one vote in decision making process in a particular meeting they are in attendant
- (k) Subject to (j), the reps are not eligible to be voted for in any executive position
- (l) There will be no refund of cash to a member who withdraw his/her membership or is expelled from the institution for either misconduct or other violations as enshrined in this constitution
- (m) Any act of violence during meetings is highly prohibited and it is punishable by a fine that will be agreed upon by the executive management body
- (n) Voting rights to punish meeting defaulters is ceased during the peak of the meeting until after the meeting, when executive members should thoroughly look into such issues and take decisions

- (o) Members who embezzle or misuse the institution's funds shall be prosecuted and charge for refund before the executive body considers the next line of action, that is to either expel or suspend their membership
- (p) The two founding members of this organization shall be entitle to 10% of the Corporate activities' net profit/profit after interest and tax before any other further decision is decision is to be made on either payment of dividend, profit sharing or otherwise.

Article 4. Supremacy of the Constitution.

The Constitution is the supreme document of the Association and by extension the Organisation (Corporate) that binds and regulate the activities of its member, except otherwise where the National Constitution of Sierra Leone so requires. Where this Constitution and the Organisation's Policies has differences, the Supremacy of this Constitution takes precedence

Article 5. Period, Nature, and circumstances of Review of the Constitution

- (a) The period for review of the Constitution, if so required by two third (2/3) majority of the general members of the (Association) and 2/3 of the corporate Membership (Board of Directors of the Organisation) shall be after a period of ten (10) years. The Corporate membership required to make this decision are the members of the Board of Directors who continues to pay their contribution/Shares into the Association

PART FOUR (IV) - Membership of the Association

Article 6. Registration policy

- (a) A member must be a Sierra Leonean
- (b) Members must be eighteen (18) years and above
- (c) Members vying for the position of directors must at least have Higher Teachers Certificate or its equivalent, or any other equivalent tertiary or technical qualification (s) from a recognized institution
- (d) A member must not have any criminal record
- (e) Members must be sound minded

Article 7: Membership Disqualification

- (a) When a member fails to attend five (5) consecutive meetings without any tangible reason for doing so. The tangible reason must be communicated to either the Secretary General or the President 48 hours before the meeting
- (b) When a member fails to pay contributions for five (5) consecutive months
- (c) When a member is found guilty of any criminal offence, either in a court of law or within the Association when a disciplinary Committee with 2/3 majority consented
- (d) If a member uses or impersonate the name of the Association without the notice of the executive members
- (e) When a member losses his/her senses or be of unsound mind
- (f) However, subject to (e) above, the member who later regains his normal senses with proven medical record can rejoin the institution and continues membership from where he/she left before insanity
- (g) When a member involves or engages in any activity that has the propensity of tainting the good image of the Association

Article 8: Period of Disqualification.

- (a) The period for disqualification of membership ranges between 1-30 days
- (b) Members who wish to appeal on Disqualification grounds must do so in writing as stated in (a) above

Article 9: Reference for disqualification.

Members are disqualified reference to S. 7(a, b, c, d, e, and g) of this constitution

Article 10: Duties of members of the Association

- (a) members must attend regular meetings
- (b) Executive members and all other members must carry out their responsibilities as stated in Part five (5) of this constitution

- (c) Members must pay their monthly subscriptions
- (d) Members must be discipline during meetings and within the course of running the activities of the Organisation

Article 11: Powers and rights of members of the Association

- (a) Every registered and fully paid member has the right to vote and be voted for
- (b) Freedom of speech and opinion during meetings
- (c) Every registered and fully paid up member has the right to move a motion and pass a vote of non confidence to a member(s) guilty to prejudice, when approved by two third (2/3) majority of the general membership
- (d) Every member has all the rights as enshrined in this Constitution

Article 13: Meetings of the Association

- (a) monthly meetings if so, required shall be held in the last Sunday of every month, or any time generally agreed upon by members
- (b) Extra Ordinary Meetings (EOM) shall be called upon when the need arises and must be communicated to all members, either through Radio announcements, phone calls, text messages, other social media means, or personally meeting people to get them informed
- (c) Annual General Meeting (AGM) is to be held every December, date to be arranged by the Executive Management body and communicated to all
- (d) Subsequently annual general meetings within 6 months after the end of the preceding financial year.
- (e) The annual general meeting must:
 - i. Appoint an external auditor or seek the services of an audit firm
 - ii. Approve a report of the board on corporate affairs for the previous financial year
 - iii. Approve the financial statements and auditor's report where applicable for the previous financial year;
 - iv. Elect Directors
 - v. Elect other Executive members
 - vi. Decide on Committee members
 - vii. Decide on the future business of the Organization. The Directors and the Chairman of the Board and have a separate discussion on this which will be presented to the CEO and founder for approval

PART FIVE (V). ELECTIONS

Article 13: Qualification for elections/appointments

- (a) A fully registered and paid-up member
- (b) A member must be regular during meetings
- (c) A member must not have been found guilty of any criminal offence, either by a court of law or within the Association
- (d) A member must at least be fluent in two of the national languages, including Krio and English
- (e) Candidates for the position of President, Secretary General, Financial Secretary and Public Relations Officer must be able to read and write simple and clear English, an undergraduate degree or its equivalent is preferable.
- (f) Members must have paid their candidature fees generally agreed upon by the general membership, one month prior to the election date
- (g) Members must be of sound mind
- (h) Only members vying for elected positions shall pay candidature fee

Article 14: Disqualification for elections/appointments

- (a) A member without an updated membership card, that is discrepancy in the monthly subscription
- (b) If a member is not nominated by the electorates/delegates
- (c) A member who has been found guilty of unlawful canal knowledge and violation of human rights
- (d) A member is also disqualified reference to Part (V) S. 7(a, b, c, d, e, and g) of this Constitution
- (e) Non payments of candidature fee within the stipulated date

Article 15: Electorates/delegates.

(a) Electorates/delegates are members who meet the membership requirements as stated in Part Four (IV) S. 7(a-e) of this Constitution

Article 16: Qualification for electorates/delegates

- (a) A delegate/electorate is qualified subject to S. 13(a-c)
- (b) A member must not be under the influence of alcohol during the day of voting
- (c) A member with an updated membership card
- (d) A member must also be present during the day of voting
- (e) No proxy voting is allowed

Article 17: Disqualification of delegates/electorates

- (a) Delegates/electorates are disqualified if they are non-registered and fully paid up members
- (b) Members who perpetually absent from meetings without tangible reason(s)
- (c) A delegate/electorate can also be disqualified subject to S. 14(c) of this Constitution
- (d) A delegate/electorate can also be disqualified subject to S. 13(c) of this Constitution

Article 18: Electoral procedures

- (a) Elections of officials must be done after every four (4) years
- (b) A member acting in the capacity of an expelled or suspended executive member must do so only within the time frame of the suspended or expelled executive
- (c) An acting member can aspire for any position including the one he/she is acting on, as long as he/she fulfills the criteria as stated in S. 13(a-d) of this Constitution
- (d) An executive member must not contest for the same position after two consecutive terms of office
- (e) Subject to (d), he/she can do so after a successive term(s) of another member(s)

Article 19: The election process

- (a) The president shall announce all positions vacant at the end of tenure of office of the current executive
- (b)(i) Selection of an independent Electoral body by the current executive with the approval of two third (2/3) of the general membership
- (ii) The chief Electoral Commissioner who also serves as the chairperson of the electoral committee must either be a board member or chairperson of a registered National or International Organization or a Non-Governmental Organization (NGO), or a rep from either the district council or any state institution approved for such purpose, and this individual must be approved by at least two third (2/3) majority of the general membership
- (iii) The electoral commissioner shall only conduct elections for two times
- (iv) The electoral committee shall also consist of some members of the Advisory Board and the Disciplinary committee of the Organization
- (c) The announcement of elections date and declaration of the campaign period
- (d) Verification of Candidature fees, if paid within the stipulated time
- (e) Verification of electorates/delegates' eligibility through the Secretariat, via the financial secretary and Secretary General
- (f) Giving of manifestos by the candidates
- (g) (i) Elections shall be done through the secret ballot
- (ii) Counting of votes must be done in the open
- (iii) Winners are determined by simple majority of the valid votes cast and they shall be announced by the Chief electoral officer in the same day elections are held
- (h) Handing over ceremony shall be done not later than one (1) week after elections
- (i) Winners should be sworn in as soon as the handing over ceremony is done

PART SIX (VI)-The structure of the Organisation

Article 20: The structure of the Organisation

This structure shall comprise of three main organs;

- (a) The general membership
- (b) The executive management body and the Advisory Board
- (c) Board of Directors, the strategic corporate face of the Organization

Article 21: Functions of the general membership.

- a. It shall comprise of all the members of the Organization
- b. It is the biggest body in the Organization comprising of all members
- c. It shall debate and ascend all policies of the general membership and by extension, shall also make recommendations where applicable for the corporate face of the organization

Article 22: The executive management body.

- a. This body involves the Executive Structure, Reps and area Coordinators. These Representatives and (or) Area Coordinators shall act in full capacity of the Executive Management Body in the particular location or Area they represent. They shall make report to the Executive management body during, either monthly or weekly meetings, or when the need so requires
- b. There shall also be an elected Board of Directors structure, which looks into the corporate affairs of the Organization
- c. The executive management body and the Board are the second highest decision-making bodies in the Organisation and they shall comprise of both elected and appointed Positions. The elected positions at the general membership level are;
 - i. The President
 - ii. The Secretary General
 - iii. The Financial Secretary
 - iv. The Social Secretary/Public Relations Officer
 - v. The Auditor General
 - vi. The other positions in the general membership structure including other committee members are appointed by the President through the advice of the Board of Directors (corporate face of the Organisation) and the Advisory Board of both the general membership and the Corporate level
- (d) The entire executive management body are;
 - i. The President
 - ii. The Secretary General
 - iii. The Financial Secretary
 - iv. The Social Secretary/Public Relations Officer
 - v. The Auditor General
 - vi. The Vice President
 - vii. The Assistant Secretary General
 - viii. The Assistant social secretary/Assistant Public Relations Officer
 - ix. The Advisory Board and Board of Directors
 - x. The disciplinary committee
 - xi. The Social committee
 - xii. The Micro finance committee
 - xiii. All other assistant/deputy positions and functional Committees with clear mandates would be agreed upon by the Executive Management Body through the advice of the Board of Directors and the Advisory Board

ARTICLE 23: Functions of the executive management body

- (a) Shall be the supreme decision bodies in the Association general membership level, except where over 70% of this membership decides otherwise
- (b) Shall responsible for the execution of the day-to-day management of the Association
- (c) Shall appoint other committee members
- (d) Shall appoint all other appointed executive positions
- (e) Responsible for formulating policies and procedures to ensure efficient management and accomplishment of the organization's goals
- (f) Shall uphold the business values of the Institution
- (g) Shall responsible to take legal actions against member(s) in violation of the Organization's policies

ARTICLE 24. Functions of members of the executive management body and other Functional Committees

(a) The President

- I. Shall serve as the Secretary to the Board of Directors of the Organisation
- II. Shall preside over all executive and general meetings of the Association
- III. He is responsible for the approval of all appointed officials
- IV. Shall summon or suspend a meeting in the case of emergencies
- V. Shall announce all positions vacant at the end of tenure of office of a particular executive
- VI. Shall oversee the activities of all the committees and their officials
- VII. Shall be the final person to approve the actions taken by the Disciplinary committee against a defaulting member
- VIII. Shall responsible for the approval of all disbursement made by the Organization
- IX. Shall also approve members selected by the social secretary to attend meetings on behalf of the Association
- X. Shall be able to source funds for the Association
- XI. Has the rights to appoint a member to act in vacant position(s) in the case of a suspended, re-signee, or expelled official

(a) The Vice President

- I. Shall assume the duties of the President in his or her absent
- II. Shall take directives and instructions from the President

(c) Secretary General

- I. Shall take minutes during meetings
- II. Shall be the custodian and record taker of the Association
- III. Shall work closely with the President and Vice President
- IV. Oversees the functions of the secretaries of the various committees
- V. Shall prepare the agenda of all meetings in consultation with the President
- VI. Shall reply to all letters written to the Association
- VII. Shall write all official letters going out of the Association

(d) The Assistant Secretary General

- I. Shall assume the position of the Secretary General as enshrined in S. 25 (c) (I-VIII) in the case of this constitution

(e) Financial Secretary

- I. Shall take care of all monetary transactions of the Association's general membership
- II. Shall responsible for the production of receipts for all financial undertaken of the Association's general membership
- III. Shall produce receipt(s) for any deposit made to the bank account of the general membership
- IV. Responsible for the collection of all monthly subscriptions made by members
- V. Responsible to track all financial management information system (MIS) of the Association
- VI. Shall be the Chairperson of the micro finance loan scheme
- VII. Shall take records of all monetary transactions undertaken by the other committees
- VIII. He/she shall serve as liaison officer between the bank and the Association

IX. Shall make deposit of cash to the bank as soon as the liquid cash in hand exceeds one million Leones (Le1,000,000) or its equivalent in any denomination or currency

(f) Assistant financial secretary

I. Shall act in the capacity of the financial secretary as stated in (e) above upon his/her resignation, suspension, absent, or expel

II. Shall take directives and instructions from the Financial Secretary

(g) Social Secretary/Public Relations Officer

I. Shall be the Chairperson of the social committee

II. shall responsible for all social activities of the Association

III. Shall relay the matters of the Association to the public when necessary

IV. Shall be able to initiative the idea of social activities that brings income to the Association

V. Shall represent or appoint social representatives of the Association subject to the President's approval

VI. Shall partner with other committee members in any mobilization of members to undertake an activity

(h) Assistant Social Secretary/Assistant Public Relations Officer (PRO)

I. Shall assume the duties of the social Secretary as enshrined in S. 25(f) (I-VI) of this constitution in the absent of the Social Secretary

II. Shall take directives and instructions from the Social Secretary or PRO I of the Association

(i) Auditor General and Team

I. There shall be at least three (3) auditors headed by the Chief Auditor or Auditor General of the Association, who shall be responsible for auditing the financial records of the Association and report to the executive management body of their findings

II. Shall check on the proper use of the Association's property and report their findings to the executive management body

III. Shall also audit other financial activities undertaken by the Association

(j) The Advisory Board

I. There shall be at least five (5) Advisory Board members, which shall comprise of at least three (3) ex-official members, a member from a recognized Civil Society Organization, one senior member of an International Non-governmental Organization or Local NGO and at least one person (a citizen, preferably a senior citizen) with a legal background.

II. They shall advice the executive management body on the smooth running of the Association

(k) The Disciplinary Committee

I. There shall be a disciplinary Committee which shall comprises of at least five (5) members, of which shall consist of a Chairperson appointed by the President in consultation with the Board of Directors, a member from the Board of Directors, an ex-official, one person (a senior citizen) with a legal background and one current executive member, suitably the Secretary General or otherwise

II. The Discipline Committee of the Organization shall exercise independent and maintain utmost fairness in the discharge of its functions

III. They shall preside over all matters relating to discipline and good conduct in the best interest of the Organization

IV. Shall also serve as the arbitration committee for resolving matters among members of the Association

V. Shall prescribe punishment for defaulters or make recommendations after any investigation for the approval of the President

(l) The Micro Finance Committee

I. There shall be a Micro Finance committee made up of not less than five (5) members and shall be headed by the Financial Secretary and other members appointed by the President through the advice of the Board of Directors and the Advisory Board

II. It shall determine the interest rate of the loan given out to members with advice from the board of directors

- III. Shall also fix the period for the payment of all loans given out
- IV. shall responsible for the collection of loans and their interest
- V. Shall take action in the case of any loan default in consultation with the disciplinary committee
- VI. Shall request for collateral security before giving out loans to members
- VII. Shall administer all issues relating to the Micro Finance matters of the Association
- VIII. Shall determine the eligibility of the loaner/clients in consultative with the executive management body

(m) Social Committee

- I. There shall be a Social Committee comprises of least five (5) members, headed by the social secretary/PRO I
- II. shall responsible for the social mobilization of the Association
- III. Designing all social activities of the Association
- IV. Shall bring to the attention of the general membership any social activity that they will want the Association to undertake
- V. Shall connect the Association with the public

25. Resignation of the executive management body

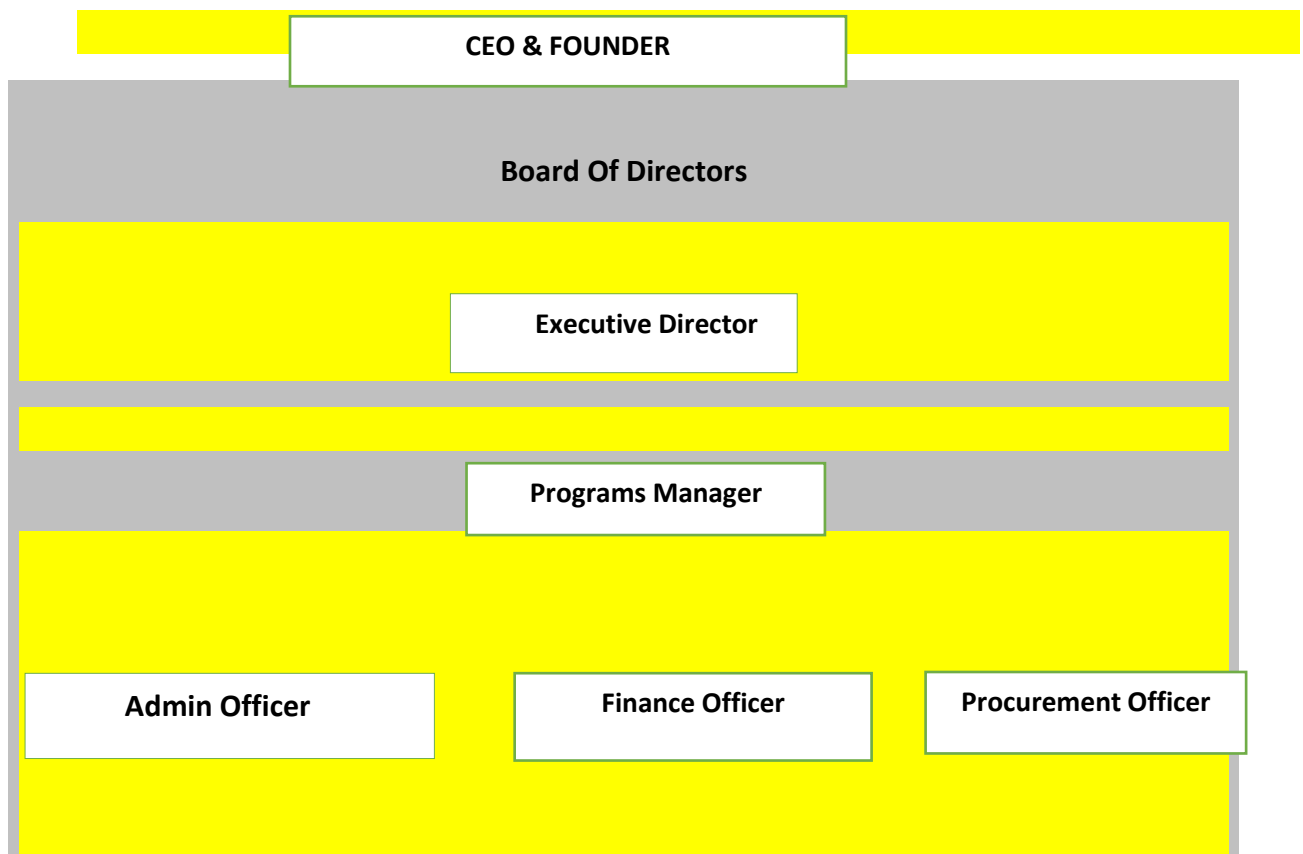
- (a) Shall write officially to the executive management body stating the reason(s) for resignation
- (b) Shall wait for the response from the executive management body on the letter written from(a) above
- (c) Shall wait to hear from the disciplinary committee on the investigation of issues surrounding his/her resignation, if so required
- (d) Shall handover all properties and monies of the Association to the President
- (e) Shall resigns with clean hands, and shall not entitle to anything thereafter
- (f) Shall write to the executive management body requesting any property or cash in possession of the Association that due him/her, either in debt or mortgage if he/she so wishes
- (g) All monthly subscriptions and other contributions are not refundable

Article 26. Board of Directors, the strategic corporate face of the Organization

1. The affairs of the Organization shall be divided into two, those at the Community or Association's general level (General membership) and those at the corporate face of the Organization managed by a Board consisting of a minimum of 5 members and a maximum of 7 members
2. The directors shall, subject to the provisions of the Corporate Affairs Commission and the company's Act and this constitution, exercise the powers and duties of the corporate face of this Organization.
3. The number of directors shall subject to the approval of members at the next general meeting, determined by the Board from time to time. If, however, the members do not approve the decision of the Board and a vacancy arises as a result thereof, such vacancy shall be regarded as a casual vacancy to be filled in immediately. The CEO and founder shall recommend a person to act in such capacity until the matter is resolved, if not until the next meeting held for such purpose
4. Directors shall be elected at a meeting convened for such purpose after every five years term or during the annual general meeting should there be any coincidence as agreed upon by all
5. The Board of Directors shall appoint or hire, whichever way deemed necessary other members of staff at the Corporate level for effective and efficient management of the affairs of the organization at that level
6. Terms of Reference (TOR) for each staff employed shall be designed by the Chairman Board of Directors or any technical person hired for such purpose in consultation with the Programs/Social Business Enterprise Manager where he has been employed **or Executive Director, to be APPROVED BY THE CEO and founder**

Article 27: Organization and Management Structure of the Organisation's corporate face

(a) ORGANOGRAM



Marketing & Communication Officer

Operations Officer

Programs Training Facilitators/Field officers

(b) Persons not competent to be Director

No person shall hold the office of director if –

- i. A person is of unsound mind;
- ii. A person who has at any time been convicted (whether in the Republic Of Sierra Leone or elsewhere) of theft, fraud, forgery, or any offence involving dishonesty in connection with the formation or management of a co-operative or other corporate entity

(c) Qualification for Board of Directors

- i. The 2 founding members of the Organisation
- ii. Fully paid-up member
- iii. At least a first-Degree Holder, and masters is an added advantage

(d) Term of office for Board Directors

- i. Board of Directors term of office is four (4) years
- ii. Retiring Directors are eligible for re-election.
- iii. The directors to retire each year shall be those who have been longest in office since their last election at the annual general meeting but as between members who became directors on the same day, those to retire shall, unless they otherwise agree among themselves, be determined by ballot.

(e) Nomination of Directors and voting for Directors

- i. Candidates for the position of Director shall be nominated openly at the annual general meeting held for the purpose of electing one or more directors.
- ii. The founding members (founder and Co-founder) shall always entitle to retain three (3) permanent representatives at the Board of Directors level. These can be two for the Founder and one for the Co-founder. These reps can be withdrawn and replaced at any time by those who recommended them to such capacity. The space of representation for the founder and Co-founder are permanent at the Board level. These founding members and or their representatives will sum up the members of the Board of Directors to Seven (7)
- iii. Without prejudice to the clauses stated for membership requirements in this constitution, a member, including a retiring Director, qualifies to be elected or re-elected as Director only if he is nominated by 2/3 majority of the General members
- iv. If the number of candidates nominated does not exceed the number of vacancies on the Board to be filled, such candidate or candidates shall be declared elected at the annual general meeting.
- v. If the number of candidates nominated exceeds the number of vacancies on the Board, as many Directors as there are vacancies shall be elected from the nominees at the annual general meeting.
- vi. If insufficient or no candidates are nominated to fill the vacancies on the Board, such vacancies shall be regarded as casual vacancies to be filled immediately with the approval of the CEO AND FOUNDER.
- vii. The method to be followed in electing Directors shall be as determined by the Chairperson of the meeting. At the election of Directors, a member shall vote for as many candidates as there are vacancies to be filled on the Board and those candidates receiving the highest number of votes shall be declared elected.

(f) Filling of a vacancy on the Board

- i. Any vacancy occurring on the board during the year shall be filled until the next annual general meeting by a member

appointed, by the remaining Directors, subject to the provisions of approval by the CEO and founder.

- ii. At the said annual general meeting a member shall, subject to the provisions of this constitution, be elected to fill the vacancy.
- iii. Any director elected at such general meeting shall not hold office for a period longer than the unexpired portion of the period of office of the Director whose office became vacant.

(g) Conditions for Vacation of office

A Director shall vacate his/her office –

- i. If he/she becomes incompetent in the dispensation of function according to this constitution to hold the office of Director; If he absents himself from more than three consecutive ordinary meetings of the Board without its leave; or
- ii. Upon the expiry of thirty (30) days, or such shorter period as may be recommended by the Board and approved by the CEO and founder, after he has resigned as a Director of the organisation.

(h) Conditions and Processes for the appointment of the Chairperson, Vice-Chairperson and Acting Chairperson of the Board of Directors

- i. At the first meeting of the Board held after the formation meeting and thereafter at the first meeting of the Board held after every annual general meeting of members or when the necessity arises, the Directors shall elect from among themselves a Chairperson and Vice-Chairperson
- ii. The Vice-Chairperson shall act as Chairperson whenever last-named is absent or unable to act as Chairperson, and if both the Chairperson and Vice-Chairperson are absent or unable to carry out the functions of the chairperson, the board must elect another Director to be Acting Chairperson during such absence or incapacity.
- iii. The Chairperson of the Board of the Organisation shall vacate the office of the Chairperson if he – Ceases to be a Director of the Organisation
- iv. Resigns as Chairperson; or
- v. Is relieved of the office of Chairperson by the Board.
- vi. The provisions of clause of Chairperson shall be mutatis mutandis apply to the vice-Chairperson of the Board.

(h) Board meetings and Quorum

- i. Meeting of the board shall be convened by the Board or the Chairperson of the Board or any two Directors of the Organisation or the Board Secretary.
- ii. The majority of Directors shall constitute a quorum of a meeting of the Board.
- iii. Questions arising at a meeting of the Board shall be determined by a majority of the Directors present at the meeting and in the case of an equality of votes, the Chairperson of the Board or the person acting shall decide
- iv. Chairperson shall have a casting vote in addition to his deliberative vote. By-laws
- v. The Board has power to make by-laws and actions provided they are not repugnant to this constitution.
- vi. Delegation of powers to a committee
- vii. The Board may delegate one or more of its powers to a director or to a committee appointed by the Board or Manager or staff of the Organization.
- viii. Any Director or Committee or Manager so appointed must in the exercise of the powers so delegated, abide by such rules as may be made and follow such instructions as may be issued, in regard thereto, by the Board.

(i) Special General Meetings of the Committee members

- i. The Secretary will call a Committee Meeting at the request of the majority of the committee or at least three other Committee members giving a written request to the Chair or Secretary stating the reason for their request.
- ii. The meeting will take place within twenty-one days of the request.
- iii. All members will be given two weeks' notice of such a meeting, giving the venue, date, time and agenda, and notice may be by telephone, WhatsApp or email.
- iv. The quorum for Special Committee Meeting shall be 50% of the Committee membership

- v. Committee Meetings are open to all Committee members and will be held at least once every six month or more often if necessary.
- vi. All Committee members will be given one week notice of such a meeting, giving the venue, date, time and agenda, and notice may be by telephone, email or post.

(j) Rules of Procedure for Meetings

- i. All questions that arise at any meeting will be discussed openly and the meeting will seek to find general agreement that everyone present can agree to.
- ii. If a consensus cannot be reached a vote will be taken and a decision will be made by a simple majority of members present. If the number of votes cast on each side is equal, the chair of the meeting shall have an additional casting vote.

PART VII – FINANCE

ARTICLE 27: Financial Provisions

(a) Sources of Finance/funds generation

- i. Registration fees
- ii. Donations
- iii. Share/Contributions from members
- iv. Fines
- v. Social activities
- vi. Returns from Corporate or business activities
- vii. Humanitarian assistants
- viii. Other profitable projects and investments undertaken by the Organization

(b) Controlling Finances

- i. Two accounts shall be maintained by this Institution; one account maintained on behalf of the Organisation by the Board of Directors and the CEO and founder for the corporate face of the Organisation and another one maintained for the Association non corporate or general activities. Four cheque signatories shall be maintained at each level;
- ii. At the corporate level (the CEO & Founder -A, Cooperative Affairs Manager/Programs Manager or Executive Director A (option), the Finance officer/Manager/Director -B, and the Board Secretary General or any other person generally agreed upon as B Option by the Board).
- iii. At the Association's General level (the President-A, the Secretary General A (option), the Financial Secretary B, and any other member agreed upon to be B option) by both the board and the CEO & founder. The signatories must not be related nor members of the same household or family. Any two of the (one from A and any one from B) Signatories will do a transaction with the bank
- iv. For cheque payments, the signatories (1 Signee from A and 1 Signee from B) will sign the cheque at all levels
- v. Records of income and expenditure will be maintained by the Finance Department at both the Corporate and the General Association's level, and statement given at each meeting or any meeting called for such purpose.
- vi. All money raised by or on behalf of the Institution is only to be used to further the aims of this institution, as

specified in this constitution.

- vii. Other donations, can also be done through the Institution's bank account, if so wished by the donor
- viii. An imprest system determined by the executive Management Body through advise from the Advisory Board and the Board of Directors shall be maintained at both Corporate level and the general membership level

Article 27: Amendments to the Constitution

- a) Amendments to the constitution may only be made at the Annual General Meeting or at Special General Meetings called for such purpose.
- b) Any proposal to amend the constitution must be given to the Board Secretary in writing. The proposal must then be circulated with the notice of meeting.
- c) Any proposal to amend the constitution will require a two thirds majority of those present and entitled to vote.

Article 28: Dissolution

- a) If a meeting, by more than 90% of the general membership, decides that it is necessary to close down the Association, it may call a Special General Meeting to do so. The sole business of this meeting will be to dissolve the organization.
- b) If it is agreed to dissolve the Organization, all remaining money and other assets, once outstanding debts have been paid, will be shared according to nominal/contribution value. The corporate members will agreed at the meeting for the dissolution.

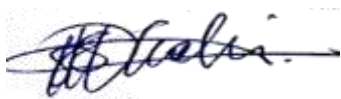
Article 29: Membership Agreement

This Constitution is developed by Mr. Abu Bakarr Koroma, Chief Executive Officer and founder, Executive Director and Chairman Board of Directors of Community Engagements for Sustainable Transformation (CEST) and Mr. Ibrahim Chernor Jalloh, Co-founder, Financial Secretary and board member for same, and adopted as a working document/constitution for this Institution **on the fourteenth day of January 2022.**

After series of deliberations made, Mr. Saidu Sahid Kabia, the Organization's Secretary moved the motion for the adoption of this constitution and seconded by Mr. Ibrahim Joseph Kamara, one of the founding members and Directors and finally endorsed by the general membership present.

The general membership of CEST has **on today's date, the 14th Day of January, 2022 approved** this supreme document and have agreed to work in line with its dictates

Signed by;



.....
ORGANIZATION'S SECRETARY GENERAL



.....
Co-Founder, FINANCIAL SECRETARY & DIRECTOR



.....
CEO & Founder, Executive Director and Board of Directors Chairman